

CHAPTER 43

National Insurance (Industrial Injuries) Act, 1953

ARRANGEMENT OF SECTIONS

Section

1. Amendments as to insurable employments (ships and aircraft).
2. Power to modify basis of contributions in special cases.
3. Amendments dealing primarily with benefit.
4. Amendments dealing with the determination of claims and questions.
5. Amendments as to advisory bodies.
6. Further power to extend benefits to past cases.
7. Payments out of voted moneys.
8. Consequential and transitional provisions.
9. Short title, citation, construction, extent and commencement.

SCHEDULES:

First Schedule—S. 40 (2) and (3) of the principal Act in the original and revised forms.

Second Schedule—Consequential and transitional provisions.

An Act to make further provision with respect to the system of insurance established by the National Insurance (Industrial Injuries) Act, 1946, and to extend the class of persons to whom certain benefits may be paid under section eighty-two of that Act and the benefits under that Act which may be so paid.

[31st July 1953.]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) In relation to any prescribed employment in connection with a ship or vessel, being employment which would be included in paragraph 2 of the insurable employments Schedule if the ship or vessel were within sub-paragraph (2) of the paragraph, that paragraph shall apply (in addition to the ships or vessels within sub-paragraph (2) of it) to any prescribed ships or vessels, whether British or not: Amendments as to insurable employments (ships and aircraft).

Provided that the paragraph shall not by virtue of this subsection apply to a ship or vessel in relation to any employment unless the person by whom the remuneration in respect of that employment is paid, or, in the case of employment as master or member of the crew of the ship or vessel, either that person or the owner of the ship or vessel (or managing owner if there is more than one owner), has a place of business in Great Britain.

(2) In relation to any prescribed employment in connection with an aircraft, being employment which would be included in paragraph 5 of the insurable employments Schedule if the aircraft

were within sub-paragraph (2) of the paragraph, that paragraph shall apply (in addition to the aircraft within sub-paragraph (2) of it) to any prescribed aircraft, whether registered in the United Kingdom or not:

Provided that the paragraph shall not by virtue of this subsection apply to an aircraft in relation to any employment unless the person by whom the remuneration in respect of that employment is paid, or, in the case of employment as pilot, commander, navigator or member of the crew of the aircraft, either that person or the owner of the aircraft (or managing owner if there is more than one owner), has a place of business in Great Britain.

(3) Any employment under a contract—

- (a) to act as master or member of the crew of such of the ships or vessels of a particular owner or owners as may be determined in accordance with the contract; or
- (b) to act as pilot, commander, navigator or member of the crew of such of the aircraft of a particular owner or owners as may be so determined;

shall be deemed to be included in sub-paragraph (1) of paragraph 2 or sub-paragraph (1) of paragraph 5, of the insurable employments Schedule, or in paragraph 2 or 3 of the excepted employments Schedule, where the employment would be so included in the case of each ship or vessel, or each aircraft, if the contract related to it alone.

(4) After paragraph 2 of the insurable employments Schedule there shall be inserted—

“ 2A.—(1) In the case of a qualified British radio officer, employment under a contract to act as radio officer on board such ships or vessels as may be determined in accordance with the contract, where the contract is a contract of service, the remuneration in respect of the employment is paid by a person having a place of business in Great Britain and any other prescribed conditions are satisfied, not being employment while the person employed is serving as radio officer on board a ship or vessel.

(2) In this paragraph the expression ‘ qualified British radio officer ’ means a person who possesses qualifications enabling him to be radio officer on board a British ship registered in the United Kingdom of a class required under section three of the Merchant Shipping (Safety Convention) Act, 1949, to carry a radio officer, and the expression ‘ radio officer ’ includes radio operator ”;

and in paragraph (a) of subsection (1) of section seventy-seven of the principal Act (by virtue of which regulations may modify the principal Act in its application to mariners, that is to say,

to persons who are insured persons by virtue of paragraphs 2, 3 and 4 of the insurable employments Schedule) for the words "paragraphs 2, 3 and 4" there shall be substituted the words "paragraphs 2, 2A, 3 and 4".

(5) For the purposes of this section—

- (a) the expression "owner" has in relation to a ship or vessel the same meaning as in paragraph 2 of the insurable employments Schedule, and in relation to an aircraft the same meaning as in paragraph 5 of the insurable employments Schedule; and
- (b) the expressions "the insurable employments Schedule" and "the excepted employments Schedule" mean respectively Part I and Part II of the First Schedule to the principal Act.

2.—(1) In relation to persons in any prescribed employment being insurable employment, regulations may provide that the contributions to be paid under paragraph (a) of section two of the principal Act by the employer and the insured person shall be determined by reference to work actually done by the insured person or by a group of persons of whom he is one, or to remuneration paid to him or to such a group, instead of by reference to the weeks in which the insured person is employed.

Power to
modify basis of
contributions
in special
cases.

(2) Any such regulations may contain such incidental or supplementary provisions (including provisions modifying any provision of the principal Act relating to contributions) as appear to the Minister to be expedient for the purposes of the regulations.

(3) No regulations made under this section shall have effect in relation to any employment which is for the time being an employed contributor's employment within the meaning of the National Insurance Act, 1946.

3.—(1) For subsection (1) of section twelve of the principal Act (which defines the circumstances in which an insured person is entitled to disablement benefit) there shall be substituted the following subsections:—

Amendments
dealing
primarily
with benefit.

"(1) Subject to the next following subsection, an insured person shall be entitled to disablement benefit if he suffers as the result of the relevant accident from loss of physical or mental faculty such that the extent of the resulting disablement assessed in accordance with the following provisions of this section amounts to not less than one per cent.; and for the purpose of those provisions there shall be deemed not to be any relevant loss of faculty when the extent of the resulting disablement, if so assessed, would not amount to one per cent.

(1A) Disablement benefit shall not be available to an insured person until after the third day of the period of one hundred and fifty-six days (Sundays being disregarded) beginning with the day of the relevant accident nor until after the last day (if any) of that period on which he is incapable of work as the result of the relevant accident:

Provided that, where he makes a claim for disablement benefit in respect of the accident before the end of that period and does not withdraw it before it is finally determined, then if on any day of that period not earlier than the making of the claim he is not incapable of work as aforesaid, the fact that he is or may be so incapable on a subsequent day of the period shall be disregarded for the purposes of this subsection ”;

and in subsection (4) of section eleven of the principal Act (which defines “ the injury benefit period ”) the proviso shall be omitted and at the end of the subsection there shall be added the words “ or the part of that period for which, under subsection (1A) of section twelve of this Act, disablement benefit in respect of the accident is not available to the insured person ”.

(2) Regulations may provide for treating a person for the purposes of the principal Act as incapable of work by reason of some specific disease or bodily or mental disablement, or as incapable of work as the result of an accident or injury, when he would not be so treated apart from the regulations, and may also make provision—

(a) as to the days which, in the case of a person who at any time is or is to be treated as incapable of work as the result of an accident or injury, are or are not to be treated for the purpose of benefit as days of incapacity for work; and

(b) as to the day which, in the case of night workers and other special cases, is to be treated for the purpose of benefit as the day of the accident.

(3) For section sixteen of the principal Act (which provides for increasing the disablement pension of a beneficiary who, after becoming entitled to the pension, enters a hospital or similar institution to receive approved hospital treatment) there shall be substituted the following section:—

“ Increase of
disablement
benefit during
approved
hospital
treatment.

16. Where a person is awarded disablement benefit, but the extent of his disablement is assessed for the period taken into account by the assessment at less than a hundred per cent., it shall be treated as assessed at a hundred per cent. for any part of that period during which he receives approved hospital treatment (whether before or after the making of the assessment or the award of benefit):

Provided that, where the extent of the disablement is so assessed at less than twenty per cent., this section shall not affect the operation of the provisions relating to disablement gratuities, but, in the case of a disablement pension payable by virtue of this section to a person awarded a disablement gratuity wholly or partly in respect of the same period, the weekly rate of the pension (after allowing for any increase provided for by this Act) shall be reduced by the amount prescribed as being the weekly value of his gratuity”.

(4) Section nineteen of the principal Act (which deals with death benefits for widows) shall be amended in subsection (3) by the substitution in paragraph (b) of the words “was over the age of forty at the end of a period for which she was entitled to such an allowance” for the words “has attained the age of fifty during a period for which she was entitled to such an allowance”.

4.—(1) A decision given by the Minister, whether before or after the commencement of this Act, may be reviewed by him under subsection (6) of section thirty-seven of the principal Act if he is satisfied that the decision was given in ignorance of, or was based on a mistake as to, some material fact, in any case in which it may be reviewed by him under that subsection on new facts being brought to his notice.

Amendments
dealing with
the determina-
tion of claims
and questions.

(2) For subsections (2) and (3) of section forty of the principal Act (which in the First Schedule to this Act are set out as originally enacted in the first column of the Schedule) there shall be substituted the subsections set out in the second column of that Schedule.

(3) Where, in connection with a claim for disablement benefit, it is decided that the relevant accident has not resulted in a loss of faculty the decision—

- (a) may be reviewed under subsection (2) of section forty of the principal Act as if it were an assessment of the extent of disablement resulting from a relevant loss of faculty; but
- (b) subject to any further decision on appeal or review, shall be treated as deciding the question whether the relevant accident has so resulted both for the time about which the decision was given and for any subsequent time.

Where a final assessment of the extent of the disablement resulting from a loss of faculty is made for a period limited by reference to a definite date, it shall be treated for the purposes of this subsection as deciding that at that date the relevant accident has not resulted in a loss of faculty.

(4) Paragraph (a) of subsection (1) of section fifty of the principal Act (which authorises a decision of an insurance officer, a local appeal tribunal or the Commissioner to be reviewed where an insurance officer or a local appeal tribunal is or are satisfied by fresh evidence that the decision was given in ignorance of, or was based on a mistake as to, some material fact), shall have effect, as respects decisions given before or after the commencement of this Act, as if before the words "satisfied by fresh evidence" there were inserted the words "satisfied and, in the case of a decision of the Commissioner".

(5) Regulations may make provision for requiring the leave of the Commissioner or of a local appeal tribunal for an appeal to the Commissioner from a local appeal tribunal, and for regulating the cases in which leave is to be granted, and for any incidental or supplementary matters (including the time and manner in which applications for leave to appeal are to be made); and so much of section forty-seven of the principal Act as makes the leave of a local appeal tribunal or the Commissioner necessary for such an appeal, or relates to applications for the granting of such leave, shall not apply where the decision appealed against is given after the coming into force of any such regulations.

(6) In the proviso to subsection (1) of section forty-one of the principal Act (which limits to three months the period to be taken into account where, by virtue of that section, the extent of a person's disablement is assessed by a single medical practitioner instead of a medical board), and in subsection (3) of that section (which deals with matters of procedure arising out of that proviso), for the words "three months" there shall be substituted the words "six months".

(7) References in the principal Act to medical practitioners shall include persons outside the United Kingdom who are not registered medical practitioners but have qualifications corresponding, in the opinion of the Minister, to those of a registered medical practitioner.

Amendments
as to advisory
bodies.

5.—(1) The Minister may pay to the chairman and other members of the Industrial Injuries Advisory Council such salaries or other remuneration as he may with the consent of the Treasury determine, either in lieu of or in addition to any expenses or travelling or other allowances payable to them under subsection (3) of section sixty-one of the principal Act.

(2) The Minister may pay—

(a) to persons who are not members of the Industrial Injuries Advisory Council, but who at the invitation of the Council are joined with members of the Council as advisers at a meeting of the Council or a committee thereof held to consider questions on which they are specially qualified, such fees as he may with the consent

of the Treasury determine, either in lieu of or in addition to any expenses or travelling or other allowances payable to them apart from this paragraph; and

- (b) to persons attending meetings of any committee of the Council at the request of the Council or of the committee, such expenses and travelling and other allowances as he may so determine.

(3) In subsection (1) of section forty-two of the National Insurance Act, 1946 (which enables regulations to make provision for referring to local advisory committees questions bearing upon the administration of that Act and for incidental matters), the reference to that Act shall include a reference to the principal Act.

6.—(1) Section eighty-two of the principal Act (which enables regulations to confer the right to an unemployability supplement or constant attendance allowance under that Act on persons having after the commencement of that Act a right to workmen's compensation in respect of employment before the commencement of that Act) shall have effect as if any reference therein to a person being entitled in respect of any injury or disease to weekly payments by way of compensation under the Workmen's Compensation Acts, or under any contracting out scheme duly certified thereunder, included a reference to a person being entitled to payments on account of an injury pension payable under or by virtue of any enactment in respect of an injury received or disease contracted by him before the commencement of the principal Act or in respect of his retirement in consequence of such an injury or disease.

Further power to extend benefits to past cases.

(2) For the purposes of the foregoing subsection the expression "injury pension" includes any pension or similar benefit payable in respect of a person's employment or former employment, being a pension or benefit which would not be payable or would be payable at a less rate but for an injury or disease referable to that employment.

(3) In subsection (1) of the said section eighty-two (which is the provision enabling regulations to confer the right to an unemployability supplement on such persons as aforesaid) after the words "the like right to payments under this Act by way of unemployability supplement" there shall be inserted the words "and the like right to payments under this Act in respect of a child or adult dependant"; and accordingly in subsection (3) of that section (which provides for applying the appropriate provisions of the Act to payments under the section) after the words "unemployability supplement" there shall be inserted the words "to an increase of a disablement pension in respect of a child or adult dependant".

Payments
out of voted
moneys.

7. There shall be paid out of moneys provided by Parliament any increase in the contributions so payable under paragraph (b) of section two of the principal Act, being an increase attributable—

(a) to the provisions of this Act extending the employments in connection with ships, vessels and aircraft which are insurable employments; or

(b) to the provisions of this Act relating to the payment of contributions in respect of an insured person otherwise than by reference to weeks in which the insured person is employed;

and any expenses incurred by the Minister or any other Government department by virtue of this Act (including expenses attributable to the provisions of section five about local advisory committees under the National Insurance Act, 1946) shall be treated as expenses in carrying the principal Act into effect for the purposes of section sixty of that Act (which provides for the payment of such expenses out of moneys provided by Parliament subject to reimbursement to the Treasury out of the Industrial Injuries Fund).

Consequential
and
transitional
provisions.

8. The Second Schedule to this Act shall have effect for the purpose of making consequential and transitional provisions arising out of the foregoing sections.

Short title,
citation,
construction,
extent and
commence-
ment.

9.—(1) This Act may be cited as the National Insurance (Industrial Injuries) Act, 1953, and this Act and the National Insurance (Industrial Injuries) Acts, 1946 to 1952, may be cited together as the National Insurance (Industrial Injuries) Acts, 1946 to 1953.

(2) In this Act the expression “the principal Act” means the National Insurance (Industrial Injuries) Act, 1946, and this Act shall be construed as one with the principal Act.

(3) This Act shall not extend to Northern Ireland, except that the power of the Parliament of Northern Ireland by virtue of subsection (4) of section eighty-four of the principal Act to enact provisions corresponding to any provision of that Act shall extend to enacting provisions corresponding to any provision of that Act as amended by this Act.

(4) This Act, except in so far as it enlarges the powers of the Parliament of Northern Ireland, shall not come into force until such day as the Minister may appoint by order made by statutory instrument:

Provided that any power under this Act to make regulations may be exercised before the day so appointed, but so that the regulations do not come into force before that day except as provided in the Second Schedule to this Act.

SCHEDULES

FIRST SCHEDULE

Section 4.

S. 40 (2) AND (3) OF THE PRINCIPAL ACT IN THE ORIGINAL
AND REVISED FORMS*Original form*

(2) Any assessment of the extent of the disablement resulting from the relevant loss of faculty may also be reviewed by a medical board, if satisfied that since the making of the assessment there has been a substantial and unforeseen aggravation of the results of the relevant injury:

Provided that an assessment shall not be revised under this subsection unless the medical board are of opinion that, having regard to the period taken into account by the assessment and the probable duration of the aggravation aforesaid, substantial injustice will be done by not revising it.

(3) Except with the leave of a medical appeal tribunal, an assessment shall not be reviewed under the last foregoing subsection on any application made less than five years, or, in the case of a provisional assessment, six months, from the date thereof, and (notwithstanding the provisions of Part II of this Act) on such a review the period to be taken into account by any revised assessment shall not include any period before the date of the application.

Revised form

(2) Any assessment of the extent of the disablement resulting from the relevant loss of faculty may also be reviewed by a medical board, if satisfied that since the making of the assessment there has been an unforeseen aggravation of the results of the relevant injury.

(3) An assessment made, confirmed or varied by a medical appeal tribunal shall not be reviewed under the last foregoing subsection without the leave of a medical appeal tribunal, and (notwithstanding the provisions of Part II of this Act) on a review under the last foregoing subsection the period to be taken into account by any revised assessment shall only include a period before the date of the application for the review if and in so far as regulations so provide.

SECOND SCHEDULE

Section 8.

CONSEQUENTIAL AND TRANSITIONAL PROVISIONS

Arising out of s. 2 of this Act

1.—(1) In subsection (1) of section thirty-six of the principal Act, in paragraph (a) (which lists the questions under that Act which are questions for the decision of the Minister) there shall be inserted after sub-paragraph (iv) the following sub-paragraph—

“(ivA) whether any employment is or was one in respect of which contributions are or were payable in accordance with regulations under section two of the National Insurance (Industrial Injuries) Act, 1953”.

Q*

2ND SCH.
—cont.

(2) In subsection (1) and the proviso to subsection (6) of section thirty-seven of the principal Act (which relates to appeals from and reviews of decisions under sub-paragraphs (i) to (iv) of the said paragraph (a)), for the words "sub-paragraphs (i) to (iv)" there shall in each case be substituted the words "sub-paragraphs (i) to (ivA)".

Arising out of s. 3 (1) of this Act

2.—(1) Subject to the next following sub-paragraph, subsection (1) of section three of this Act—

(a) shall have effect in relation to accidents happening at any time whether before or after the commencement of this Act; but

(b) shall not affect benefit rights in respect of any period before that commencement.

(2) In connection with any claim for benefit made before the commencement of this Act, the said subsection (1) shall be disregarded in determining the date when the injury benefit period is to be treated as coming to an end, and shall not be taken as making disablement benefit available to the claimant before that date; but in connection with any claim for benefit made after that commencement, the date when the injury benefit period is to be treated as coming to an end shall, notwithstanding paragraph (b) of the foregoing sub-paragraph, be determined in accordance with the said subsection (1), unless the claimant has made an earlier claim in respect of the same accident before that commencement and not withdrawn it before its final determination.

(3) Subject to the foregoing sub-paragraphs, the said subsection (1) shall be deemed always to have had effect, and regulations may make such provision as appears to the Minister to be necessary or expedient for cases where a claim for disablement benefit has been made before the commencement of this Act and the claimant becomes entitled to disablement benefit by virtue of the said subsection (1), and for any other matters of a transitional nature in connection with that subsection.

(4) Regulations may be made under the last foregoing sub-paragraph to come into force before the day appointed for the commencement of this Act.

(5) In section thirty-six of the principal Act, sub-paragraph (ii) of paragraph (c) of subsection (1) (which includes the question whether a loss of faculty is likely to be permanent among the questions to be determined by a medical board or medical appeal tribunal), is hereby repealed, except as respects any question affecting an award in respect of a period before the commencement of this Act.

Arising out of s. 3 (3) of this Act

3.—(1) Subsection (3) of section three of this Act shall apply to persons receiving approved hospital treatment at the commencement of this Act or at any time afterwards, whether or not they were awarded disablement benefit before that commencement; but a person shall not by virtue of that subsection be entitled to an increase of benefit under section sixteen of the principal Act in respect of any period before the commencement of this Act.

(2) References in this paragraph and in the principal Act to an increase of benefit under section sixteen of the principal Act shall include a disablement pension payable by virtue of that section to a person awarded a disablement gratuity, as well as an increase under that section in a person's disablement pension.

2ND SCH.
—cont.

Arising out of s. 4 (2) of this Act

4. Subsection (2) of section four of this Act shall apply to assessments made before or after the commencement of this Act, except that, where an application for the review of an assessment has been made before that commencement, the subsection shall not apply to require the leave of a medical appeal tribunal for the review on the ground that the assessment was made, confirmed or varied by a medical appeal tribunal.

Arising out of s. 4 (3) of this Act

5.—(1) Subject to the following sub-paragraphs, subsection (3) of section four of this Act shall apply to decisions given before or after the commencement of this Act, except that it shall not affect any claim for benefit made before that commencement.

(2) Where disablement benefit is or has been awarded on a claim made before the commencement of this Act to a person who has made an earlier claim in respect of the same accident, the said subsection (3) shall not apply to any decision given on the earlier claim.

(3) The reference in the said subsection (3) to an assessment of the extent of the disablement resulting from a loss of faculty shall not be taken as applying to any assessment made for the purpose of paragraph (a) or (b) of subsection (1) of section twelve of the principal Act as originally enacted, and having the effect that benefit is not payable.

Arising out of s. 4 (5) of this Act

6. In section forty-seven of the principal Act, the proviso to subsection (1) and subsections (3) to (5) are hereby repealed, except as respects appeals from a decision given before the coming into force of regulations made under subsection (5) of section four of this Act.

General

7.—(1) For the purposes of any provision of the principal Act relating to regulations under that Act and of the Statutory Instruments Act, 1946, regulations under this Act shall be treated as regulations under the principal Act.

(2) In subsection (2) of section fifty-six of the principal Act (which relates to the application of Parts II and III of that Act in relation to industrial diseases and industrial injuries not caused by accident), the references to Part II and to Part III of that Act shall be treated as including respectively subsection (2) of section three and subsections (1), (3) and (5) of section four of this Act, as well as the provisions of this Act expressly amending the Part of the principal Act in question.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Statutory Instruments Act, 1946	9 & 10 Geo. 6. c. 36.
National Insurance (Industrial Injuries) Act, 1946	9 & 10 Geo. 6. c. 62.
National Insurance Act, 1946	9 & 10 Geo. 6. c. 67.
Merchant Shipping (Safety Convention) Act, 1949	12, 13 & 14 Geo. 6. c. 43.

CHAPTER 44

An Act to amend the law with respect to customs in the
Isle of Man. [31st July 1953.]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Mechanical
lighters.

1.—(1) As from the first day of May, nineteen hundred and fifty-three, the duties of customs imposed by section five of the Act of 1949 shall not be payable on component parts of mechanical lighters, but shall be payable on mechanical lighters removed or imported into the Isle of Man incomplete as well as complete; and for the purposes of the said duties any prescribed component of a mechanical lighter, or assembly which includes such a component (other than an assembly forming a complete mechanical lighter) shall be deemed to be a mechanical lighter, but incomplete.

(2) In this section the expression “prescribed component” in relation to any class or description of mechanical lighters means the component (if any) for the time being prescribed by or under any enactment in relation to that class or description for the purposes of the duties of customs charged on mechanical lighters imported into the United Kingdom.

(3) Subject to the amendments made by this section, the duties of customs imposed by the said section five of the Act of 1949 shall continue to be payable until the first day of August, nineteen hundred and fifty-four.

Duties on
certain sound-
recorded
material.

2.—(1) Where duty is payable on the removal or importation into the Isle of Man of any goods being tapes, wires, discs or other articles which have been recorded with sound by any means, except—

(a) exposed cinematograph film; and